



CHAPTER 1.

An Act to amend the Scarisbrick Estate Act 1877.

A.D. 1904.

[1st August 1904.]

WHEREAS by the Scarisbrick Estate Act 1877 (hereinafter referred to as "the principal Act") the Trustees for the time being of the will and codicil of Charles Scarisbrick the testator named and referred to in the principal Act were empowered to grant leases of and exercise other powers over the hereditaments devised by or subject to the trusts of the said will and codicil and in particular to accept surrenders of existing leases and to make allowances on surrenders for the value of existing interests and to grant building leases for any number of years not exceeding nine hundred and ninety-nine upon the terms therein mentioned And by the 14th section of the said Act it is enacted that "as respects
" any lease or grant which may be made under the provisions of
" this Act upon the surrender of a lease or grant which shall have
" existed prior to this Act it shall be lawful for the Trustees or
" Trustee in estimating the amount of rent to be paid for any lease
" or grant which may be so made as last aforesaid to make such
" remuneration or allowance in the way of remission or abatement
" of annual charge upon the premises so surrendered to the person
" so surrendering the same in regulating the rent and other terms
" on which such new lease or grant shall be made for the value
" (if any) of the estate or interest which shall have been so
" surrendered as shall be reasonable but so as that no remission or
" abatement of annual charge shall continue or endure for a longer
" term or period than the term or period at which the estate or
" interest which shall be surrendered (if such estate or interest
" had not been surrendered) would have determined by effluxion of
" time and so as that the rent for the premises in respect of which
" such remission or abatement of annual charge is authorised to be

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“ such remission or abatement shall be made be less in amount
“ than the rent which immediately before the surrender of the
“ same premises was payable in respect of the same ” :

And whereas Philip Henry Chambres of Rhyl in the county of Flint Esquire Christopher Lethbridge of Westminster solicitor and Robert Legh Crosse retired captain 52nd Light Infantry are the present duly appointed Trustees of the said will and codicil :

And whereas since the death in 1860 of the said testator and the passing of the principal Act the property at Southport in the county of Lancaster subject to the trusts of the said will and codicil (which comprises the greater portion of the town of Southport) has developed rapidly under the management of the Trustees for the time being of the said will and codicil and become of greatly enhanced value and numerous applications have from time to time been and are still being made to the Trustees of the said will and codicil by lessees of the estate and others desirous of investing capital in the erection of new buildings or otherwise for the grant of building leases for terms not exceeding nine hundred and ninety-nine years those applicants who were already lessees of the estate praying the Trustees to accept surrenders of their existing leases and to grant them such new leases for which they are ready to pay a fine or largely increased rent :

And whereas under the powers in that behalf conferred upon them by the principal Act the Trustees from time to time of the said will and codicil have in certain cases accepted such surrenders and granted to the said lessees other leases for long terms of years and have granted building leases for long terms of years to many other applicants :

And whereas it has been found that lessees so surrendering their leases are generally desirous of having such allowances as they may be entitled to for the value of their existing interests so surrendered spread over the whole of the new term of years to be granted to them so that they may possess leases at rents uniform throughout and the Trustees of the said will and codicil have from time to time been advised that it is desirable and advantageous in the interests of the development of the said property at Southport that leases should be granted upon the said terms :

And whereas in granting certain long renewal leases upon the surrender of existing leases the Trustees granting the same in the belief that the principal Act gave them power so to do have granted the same at a uniform rent throughout so that the

allowance to the lessees in respect of their surrendered interests has been spread over the whole of the term of the renewal lease and the said lessees in taking such renewal leases have dealt with the Trustees in good faith and for valuable consideration and have accepted and carried out the terms of such leases in the belief that the Trustees granting the same had power so to do : A.D. 1904.

And whereas a question has recently arisen as to the powers of the Trustees for the time being of the said will and codicil to grant renewal leases of the description aforesaid having regard to the provisions of section 14 of the principal Act and it is apprehended that the validity of the said leases so granted is or may be open to question accordingly :

And whereas it would be for the benefit of the estate and of all parties interested or to become interested under the said will and codicil and the said Trustees are desirous that the said renewal leases so made as aforesaid may be rendered valid and that the said Trustees and other the person or persons for the time being duly appointed to be a Trustee or Trustees of the said will and codicil may be empowered to grant similar leases in future :

And whereas the whole of the net rents received by the said Trustees under the said renewal leases have hitherto been paid by them to the several persons beneficially entitled from time to time to the reversion of the premises comprised in the said leases and no part of such rents has been capitalised and all the persons in esse and of full age beneficially interested in the said premises both for life and in remainder are desirous that the same course shall be continued in future :

And whereas the said Trustees being advised that the above stated objects or some of them could not be effected without the authority of Parliament application was made to Mr. Justice Buckley by the summons hereinafter mentioned for liberty to apply for an Act of Parliament for the effecting of such objects :

And whereas by an order bearing date the eighth day of April one thousand nine hundred and four and made in the suit of Talbot v. Scarisbrick 1860 T No. 136 mentioned in the principal Act and in the matter of the principal Act upon the application by summons of the said Trustees the said judge being of opinion that it would be for the benefit of all persons interested in the inheritance of the estates devised by or subject to the trusts of the said will and codicil that an application should be made for an Act of Parliament to amend the principal Act by repealing section 14 of that Act and by enacting further that the principal Act shall be read and have effect as if the repealed section had

A.D. 1904. never been inserted therein with the intention of making valid the said renewal leases already granted by the Trustees for the time being of the said will and codicil as to which questions of validity have arisen and granting such other powers as the said Trustees might be advised to apply for it was ordered that the said Trustees should be at liberty to make such application accordingly and that the draft of the Bill for the purposes aforesaid should be settled by the judge :

And whereas in pursuance of the hereinbefore recited order the master made a certificate in the said suit and matter dated the twenty-second day of April one thousand nine hundred and four and thereby certified that the draft of a Bill to be submitted to Parliament being the Bill for this Act had been settled and approved by the said judge and was identified by the signature of the master in the margin thereof and that the several instruments facts and events recited in the preamble of the said draft Bill before the recital of the said certificate had been proved in the said suit and matter and such certificate has been duly filed and has become binding :

And whereas by an order made on the thirteenth day of April one thousand nine hundred and four in the said suit and matter Richard Atherton ffarington was appointed guardian ad litem of the infant defendants for the purpose of consenting on their behalf to this Bill :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

Therefore Your Majesty's most dutiful and loyal subjects the said Philip Henry Chambres Christopher Lethbridge and Robert Legh Crosse do most humbly beseech Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Citation of Acts.

1. This Act may be cited for all purposes as the *Scarisbrick Estate (Amendment) Act 1904* and this Act and the principal Act shall be read and construed together as forming one Act and may be cited as the *Scarisbrick Estate Acts 1877 and 1904*.

Repeal of section 14 of principal Act and validation of renewal leases.

2. Section 14 of the principal Act is hereby repealed and the principal Act shall be read and have effect as if the section hereby repealed had never been inserted therein to the intent that all the aforesaid renewal leases made by the Trustees for the time being of the said will and codicil of the said testator shall be

perfectly valid in law from their commencement and shall be deemed to have been lawfully and validly made from their commencement and shall be as effectual for all intents and purposes from their commencement as if the section hereby repealed had never been inserted in the principal Act. A.D. 1904.

3. All the estates interests or rights (whether matter of demise reservation condition covenant simple contract or otherwise) purported to be conferred or created by the deeds or other instruments or the agreements by which such renewal leases as aforesaid were effected whether limited to or expressed to be conferred upon the lessees or any other person or persons or the Trustees for the time being of the said will and codicil shall be perfectly valid in law from their commencement and shall be deemed to have been lawfully and validly conferred and created from their commencement and shall be as effectual for all intents and purposes from their commencement as if the section hereby repealed had never been inserted in the principal Act. Interests conferred by deeds &c. to be valid.

4. All such payments contracts and conveyances made and acts done or suffered prior to the passing of this Act under or by virtue of or on the faith of the validity of such renewal leases as aforesaid as would have been validly and rightly made done or suffered if the said leases had been originally valid shall have and be deemed to have had from the time when such payments contracts conveyances or acts were made done or suffered respectively the same force and effect at law and in equity as such payments contracts conveyances or acts would have had if the said leases had been originally valid and the hereditaments comprised in such leases as aforesaid shall as and from the time when such leases were made respectively be and be deemed to have been subject to the same estates interests and rights and devolve and be deemed to have devolved in the same manner in all respects as the same hereditaments would have been subject to or would have devolved if such renewal leases as aforesaid and also such payments contracts conveyances and acts as aforesaid had been originally valid. Payments contracts and conveyances under renewal leases to be valid.

5. All payments made prior to the passing of this Act by the Trustees for the time being of the said will and codicil to the several persons beneficially entitled from time to time as aforesaid to the reversions of the premises comprised in the said renewal leases of or on account of the rents received under such renewal leases shall be deemed to have been properly and validly made any rule of law or equity to the contrary notwithstanding. Past payments by Trustees to be valid.

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Future payments by Trustees.

6. The rents of renewal leases already granted and hereafter to be granted by the Trustees for the time being of the said will and codicil at rents uniform throughout upon the surrender of previously existing leases shall after the passing of this Act be payable by the Trustees to the several persons beneficially entitled from time to time to the reversion of the premises comprised in the said leases.

Trustees may accept fines or premiums on granting new leases.

7. Upon the granting of any new lease whether at the expiration of the term of or on the surrender of a former lease of the said hereditaments subject to the trusts of the said will and codicil or any part thereof it shall be lawful for the Trustees for the time being of the said will and codicil with the consent of the tenant or tenants for life or in tail for the time being of the said hereditaments or any share or shares thereof and of other the person or persons (if any) whose consent may by virtue of the Settled Land Acts be required in that behalf which consent or consents may be given either generally or for a specific time or with reference to any specific exercise of the said power to accept and take a fine or premium in lieu of or in addition to an increased rent provided that all sums of money received by way of such fines or premiums shall be dealt with as if the same were capital money arising from the said hereditaments under the Settled Land Acts or the principal Act as amended by this Act.

Rents under new leases granted on surrender of old leases.

8. Upon a surrender of any lease of the said hereditaments or any part thereof and the granting of a new lease whether for the same or for any extended or other term and whether or not subject to the same or to any other covenants provisions or conditions the Trustees for the time being of the said will and codicil may if they so think fit in taking into account the value of the lessee's interest in such surrendered lease spread the same over the whole of the term of years to be granted by such new lease so that such new lease may be granted at a rent uniform throughout the whole of the said term.

Trusts and powers may be exercised by Trustees for time being.

9. All and singular the trusts and powers hereby created and given may be exercised by the said Trustees and the survivors or survivor of them and by any other persons or person who may be duly appointed Trustees or Trustee of the said will and codicil by the Chancery Division of the High Court of Justice or other competent authority.

Construction of section 38 of principal Act.

10. Section 38 of the principal Act shall be read and construed as if the expression "this Act" where the same occurs included not only the principal Act but also this Act.

11.—(1) Saving always to the King's most Excellent Majesty his heirs and successors and to every other person and body politic or corporate and their respective heirs and successors executors and administrators (other than and except only the several persons who by this Act are expressly excepted out of this general saving) all such estate right title interest claim and demand whatsoever of in to or out of the hereditaments affected by this Act and any and every part thereof as they every and any of them respectively would have held or enjoyed or been entitled to if this Act had not been passed.

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Saving
clause.

(2) The following persons and their respective executors administrators and assigns and all persons who now derive or claim or may hereafter derive or claim title under them or any of them are excepted out of the general saving in this Act contained (that is to say) :—

The said Philip Henry Chambres Christopher Lethbridge and Robert Legh Crosse As regards the said Philip Henry Chambres as well as Trustee of the said will and codicil of the said testator Charles Scarisbrick deceased as also as trustee of an indenture of resettlement of the seventh June one thousand eight hundred and eighty-two made between William Scarisbrick since deceased of the first part Charles Frederick Maria Scarisbrick of the second part and Thomas Part (since deceased) the said Philip Henry Chambres and Charles Thomas Part of the third part and as trustee of another indenture of resettlement of the thirtieth January one thousand eight hundred and eighty-five made between Tom Naylor Leyland (since deceased) of the first part Mary Ann Naylor Leyland of the second part Sir Herbert Scarisbrick Naylor Leyland (then Herbert Scarisbrick Naylor Leyland) of the third part and the said Philip Henry Chambres and Christopher Lethbridge of the fourth part and as trustee of another indenture of resettlement of the twenty-ninth April one thousand eight hundred and ninety-five made between Sir Charles Scarisbrick (then Charles Scarisbrick) of the first part Tom Talbot Leyland Scarisbrick of the second part and the said Philip Henry Chambres and Christopher Lethbridge of the third part and as regards the said Christopher Lethbridge as well as trustee of the said will and codicil of the said testator Charles Scarisbrick deceased as also as trustee of the said indentures of resettlement of the thirtieth January one

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thousand eight hundred and eighty-five and the twenty-ninth April one thousand eight hundred and ninety-five And as regards the said Robert Legh Crosse as Trustee of the said will and codicil of the said testator Charles Scarisbrick deceased The said Charles Thomas Part as trustee of the said indenture of resettlement of the seventh June one thousand eight hundred and eighty-two Charles Frederick Maria Scarisbrick and his first and other sons born and to be born and the heirs of their respective bodies and the daughters born and to be born of the said Charles Frederick Maria Scarisbrick and the heirs of their respective bodies Rosalie Georgina Cicely Barrett Lennard Scarisbrick the wife of the said Charles Frederick Maria Scarisbrick Friedrich Scarisbrick and his first and other sons born and to be born and the heirs of their respective bodies and the daughters born and to be born of the said Friedrich Scarisbrick and the heirs of their respective bodies The first and other sons and the heirs of their respective bodies and the daughters and the heirs of their respective bodies of Sophie Thomas von Baumbach deceased and all other (if any) the sons of William Scarisbrick deceased the son of the said testator Charles Scarisbrick deceased and the heirs of their respective bodies and all other the daughters of the said William Scarisbrick deceased and the heirs of their respective bodies Sir Charles Scarisbrick son of the said testator Charles Scarisbeck deceased Dame Bertha Petronella Scarisbrick the wife of the said Sir Charles Scarisbrick Tom Talbot Leyland Scarisbrick and his first and other sons born and to be born and the heirs of their respective bodies and the daughters born and to be born of the said Tom Talbot Leyland Scarisbrick and the heirs of their respective bodies Josephine Ethel Scarisbrick the wife of the said Tom Talbot Leyland Scarisbrick Alexandra Emma von Lang Puchhof her first and other sons born and to be born and the heirs of their respective bodies and the daughters born and to be born of the said Alexandra Emma von Lang Puchhof and the heirs of their respective bodies Erneste Beatrice Kraemar her first and other sons born and to be born and the heirs of their respective bodies and the daughters born and to be born of the said Erneste Beatrice Kraemar and the heirs of their respective bodies and all other if any the sons born and to be born of the said Sir Charles

Scarisbrick and the heirs of their respective bodies and all other the daughters born and to be born of the said Sir Charles Scarisbrick and the heirs of their respective bodies Dame Jane Willson Naylor Leyland and the first and other sons of Sir Herbert Scarisbrick Naylor Leyland deceased and the heirs of their respective bodies Florence Mary Chetwynd and her first and other sons born and to be born and the heirs of their respective bodies and the daughters born and to be born of the said Florence Mary Chetwynd and the heirs of their respective bodies and all and every other persons and person to or upon whom any estate right title or interest either at law or in equity of in to out of or upon the hereditaments affected by this Act or any part thereof hath been devised given or settled or hath come or devolved or shall come or devolve under or by virtue of the said will of the testator Charles Scarisbrick deceased or the said codicil thereto or under any of the settlements in this section mentioned or by descent from the said testator Charles Scarisbrick and all persons entitled to or interested in any lease of such hereditaments or any part thereof.

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12. This Act shall not be a public Act but shall be printed by the several printers to the King's most Excellent Majesty duly authorised to print the statutes of the United Kingdom and a copy thereof so printed by any of them shall be admitted as evidence thereof by all judges justices and others.

Act as
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